OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Eight Questions for Shoalhaven Council Before It Votes Again on Land Sales

Sent 8 August 2026 · To Mayor White, Shoalhaven City Council · Response requested by 25 August 2026

8 August 2026

To:
Mayor Patricia White
Mr Andrew Constance, Chief Executive Officer
Shoalhaven City Council

Copied to: Shoalhaven City Councillors and Ms Liza Butler Member for the South Coast

Mayor White and Mr Constance,

The Council meetings of 28 and 29 July 2026 left a series of significant unanswered questions about the proposed disposal of Council land, the way those properties were presented to councillors, the rejection of community consultation, and the subsequent amendment of Council's Acquisition and Disposal of Land Policy.

Those questions have become more important following the statement by Member for South Coast Liza Butler in the NSW Legislative Assembly on 6 August 2026.

This is not a request for Council to revisit political disagreement through correspondence. It is a request for factual answers about decisions already made, information placed before councillors, information apparently omitted from the business paper, consultation undertaken before the meeting, and the process by which Council moved from a heavily attended evening meeting into a 9.30am sitting the following morning.

The two principal resolutions — CL26.157 and CL26.160 — are now subject to rescission motions listed for 25 August 2026. That provides an opportunity for councillors and the community to have these matters clarified before they are asked to consider them again.

I therefore ask that the following eight questions be answered publicly.

1. **When is staff advice binding, and when is it not?**

To Mayor White:

During debate on CL26.157, Cr Ben Krikstolaitis moved that the individual properties contained within the land-sale package be considered separately.

You opposed that course and said that separating the sites would amount to:

“taking over from the staff's professional advice to this council.”

Yet later that same evening, during consideration of CL26.167, you spoke and voted against a development application that Council staff had assessed over an extended period and formally recommended for approval.

Councillors are plainly entitled to reject staff recommendations. Exercising independent judgement is part of their elected function.

The question is therefore why reliance upon "professional advice" was advanced as a reason for councillors not to consider the land-sale properties individually when, within the same meeting, you exercised your own judgement contrary to another professional staff recommendation.

What principle distinguishes the two situations?

1. Why was the meeting resumed at 9.30am?

To Mayor White:

At approximately 9.37pm on 28 July, after the meeting had reached the 9.30pm finishing time prescribed by Council's Code of Meeting Practice, you moved:

MIN26.244 — That the meeting be adjourned until 9.30am the next day.

The motion was carried nine votes to four.

I accept that this was a resolution of Council and not a unilateral decision by the Mayor. However, you moved the motion and nominated the proposed resumption time.

Please advise:

Who selected 9.30am as the proposed resumption time?

Was any later time on 29 July considered?

Was resumption at 5.30pm or another evening time considered?

Were councillors consulted before the motion was moved about their availability during normal working hours?

Was Council aware that some councillors had paid employment commitments that could make attendance at a weekday morning sitting difficult?

Was any consideration given to the effect a 9.30am sitting would have on public attendance?

The gallery had been heavily attended on the evening of 28 July. It was effectively empty the following morning.

Given the significance of the remaining business, including CL26.160, what factors were weighed when 9.30am was selected?

1. **Why reject consultation one night and remove the consultation guarantee the next morning?**

To Mayor White:

At 8.57pm on 28 July, Cr Jemma Tribe moved an amendment to defer action involving several of the most contested properties until community consultation had occurred.

The amendment did not prevent Council eventually selling those properties. It asked that consultation occur first.

You voted against that amendment.

The following morning you moved CL26.160, adopting a revised Acquisition and Disposal of Land Policy.

The superseded policy contained a general provision for public comment before Council made a final decision to dispose of land or property.

The replacement policy instead requires Council to "give consideration" to community interests.

Why did you support both:

rejecting a specific proposal for community consultation on 28 July; and

removing Council's standing policy provision for public consultation on land disposal on 29 July?

What practical protection for public participation does the new wording provide that is equivalent to the provision it replaced?

1. **Why was the heritage status of 102 Plunkett Street omitted from the report?**

To the Chief Executive Officer:

Council's report on CL26.157 identifies 102 Plunkett Street, Nowra as the property occupied by the Werninck Craft Cottage Club.

It does not disclose that the property is a listed heritage item.

The Shoalhaven Local Environmental Plan 2014 identifies Wernick Cottage as heritage item I400, of local significance, with the statutory protections associated with clause 5.10.

The CL26.157 report proposes that the Kinghorne Street and Plunkett Street properties ultimately be capable of consideration as part of a consolidated development site of

approximately 3,200 square metres.

The heritage status of one of those parcels is therefore not incidental information. It potentially affects redevelopment options, demolition or alteration, development consent requirements and market valuation.

Please advise:

Were the officers responsible for preparing CL26.157 aware that 102 Plunkett Street was a listed heritage item?

If they were aware, why was that information not disclosed to councillors?

If they were not aware, what property and planning due diligence was undertaken before the recommendation to reclassify and sell the land was placed before Council?

Was Council's heritage or strategic planning staff consulted?

Will the heritage status be expressly identified in any revised report presented with the rescission motion on 25 August?

This question is particularly important because Council had already acknowledged and corrected a separate error concerning the description of the Green Street property immediately before the meeting.

Two materially different property-description issues within the same report warrant explanation.

1. **How will the heritage restriction affect the valuation of 102 Plunkett Street?**

To the Chief Executive Officer:

MIN26.240 provides for disposal at no less than an independent market valuation.

Has an independent valuation of 102 Plunkett Street already been obtained?

If so:

Was the valuer expressly instructed that the property is heritage listed?

Was the valuation undertaken on the basis of its existing heritage constraints?

Did the valuation assume consolidation with adjoining properties?

Did it assume any particular rezoning outcome?

Did it assume demolition, retention or adaptive reuse of the cottage?

If a valuation has not yet been undertaken, will Council ensure that the heritage listing and its planning consequences are explicitly included in the valuation instructions?

Given that councillors are being asked to make decisions about disposal of public property, will Council publish the valuation methodology — with genuinely commercially sensitive figures redacted if necessary — so the community can understand the assumptions on which the proposed disposal is based?

1. What exactly has Council authorised these properties to be rezoned to?

To the Chief Executive Officer:

Paragraph 4 of MIN26.240 resolves to:

"commence the preparation of planning proposal(s) to reclassify and/or rezone"
the identified properties at 134 and 136 Kinghorne Street, 102 Plunkett Street, 22 Jacaranda Avenue Bendalong and 158 Green Street Ulladulla.

However, the resolution does not identify the proposed destination zoning for those properties.

The body of the report identifies a proposed MU1 Mixed Use zoning in relation to part of the Kinghorne Street assemblage, but the resolution ultimately adopted by Council does not specify what zoning is proposed for each of the five parcels.

Please advise:

What proposed zoning is intended for each of the five properties?

Was a proposed destination zone determined before councillors voted on CL26.157?

If so, why was it not stated in the resolution?

If it had not been determined, on what basis did Council resolve to commence a rezoning process without knowing the zoning outcome being sought?

Who is authorised to determine the proposed destination zoning after the Council resolution?

Will that decision return to the elected Council before a planning proposal is formally progressed?

Will the relevant planning justification, land-use implications and development potential for each property be publicly reported before Council proceeds further?

In the case of 102 Plunkett Street, how will the proposed zoning take account of the site's status as heritage item I400?

In the case of 134 Kinghorne Street, how will the proposed zoning and reclassification take account of the planning history associated with its use for transitional accommodation?

This is not a minor drafting issue.

Rezoning can materially alter the permissible uses, development potential and therefore market value of publicly owned land.

Councillors should know what planning outcome they are being asked to initiate when they vote to commence that process.

If the intended zoning was already known on 28 July, Council should explain why it was not included in the resolution.

If it was not known, Council should explain how elected representatives could properly assess the consequences of the decision they were being asked to make.

1. **Who received advance consultation, and why?**

To the Chief Executive Officer and Mayor White:

Ms Butler told Parliament that Salt Ministries had discussions with Council concerning the proposed sale before the matter became public.

Salt Ministries' Peter Dover has also publicly referred to having discussions with Council before the business paper was released.

Meanwhile, representatives associated with Noah's Inclusion Services and Nowra Youth Services have said they became aware of the proposals when the Council business paper was published.

The Werninck Craft Cottage Club was similarly confronted with a proposal affecting premises it has occupied for decades.

Please provide a clear chronology.

In relation to Salt Ministries:

Who from Council met or communicated with Salt Ministries before publication of the business paper?

On what dates did those communications occur?

Which councillors, Council officers or consultants participated?

Were meeting notes, file notes, emails or other records created?

What information was provided to Salt Ministries?

Were any assurances, undertakings or indications about future tenure, relocation, transition arrangements or timing given?

If assurances were given, who was authorised to give them?

Then please explain why equivalent advance engagement was not provided to:

Noah's Inclusion Services;

Nowra Youth Services; and
the Werninck Craft Cottage Club.

If Council's position is that equivalent engagement did occur, please provide the relevant dates and records.

The issue is not whether Salt Ministries should have been consulted. Plainly an organisation potentially affected by the sale of the property it occupies should be consulted.

The question is why that principle appears not to have been applied consistently.

1. Why is Council removing the community-land safeguard relied upon in 2018?

To the Chief Executive Officer and Mayor White:

The history of 134 Kinghorne Street requires a specific explanation.

In 2018, Council progressed a rezoning to facilitate use of the property for transitional accommodation.

As Ms Butler told Parliament, the planning process changed the zoning of the site but retained its classification as community land.

Her statement was that the continued community-land classification was expressly relied upon as a safeguard that the property would continue to deliver a community service.

Council is now proposing to reclassify that land so that it can ultimately be sold.

Please therefore explain:

What commitments, representations or planning assumptions were made in the 2018 planning process concerning retention of the land as community land?

Did the retention of community classification form part of the justification for the rezoning?

Were councillors considering CL26.157 provided with the relevant 2018 planning history?

If not, why not?

What has changed since 2018 that causes Council now to consider the safeguard unnecessary?

How does removing the community classification accord with the basis upon which the earlier planning decision was justified?

If Council disagrees with Ms Butler's characterisation of the 2018 planning documents, it should identify the relevant documents and explain precisely where her account is said to be incorrect.

Eight questions — but one broader issue

The eight questions above arise directly from the resolutions and the information presently available.

But they expose a broader governance issue.

Council was considering properties with radically different histories and purposes: vacant or under-utilised land, a youth centre, homelessness services, disability and early-intervention services, a heritage cottage, a former RFS facility and land Council had expressly resolved only twelve months earlier not to sell.

A motion to consider those properties individually was defeated 7–6.

A motion to consult before proceeding with five of the most contentious sites was defeated 7–6.

The complete land package was then carried 7–6.

The next morning, Council adopted a policy that removed the general consultation provision that had previously applied to disposal of Council property. That resolution passed 6–5.

Whether one supports or opposes any particular sale, these are legitimate matters of public administration and democratic process.

They deserve answers that go beyond saying Council has made a resolution.

Please answer before 25 August

The rescission motions concerning CL26.157 and CL26.160 are presently listed for Council's Ordinary Meeting on Tuesday, 25 August 2026.

Councillors will again be asked to decide these matters.

The community should not have to attend that meeting carrying the same unanswered questions it had when it left the chamber on 28 July.

I therefore ask that Council provide substantive responses to these questions sufficiently before the 25 August meeting to allow councillors and the public to consider them.

Where a question can be answered by an existing document — a file note, valuation instruction, planning report, correspondence or meeting record — I ask that Council identify that document and, where it is publicly available, provide a copy or link to it rather than simply providing a narrative response.

If Council considers any requested information confidential, commercially sensitive or otherwise unable to be disclosed, please identify the particular information withheld and the basis upon which Council says it cannot be provided.

I will publish any response received in full or provide a direct link to Council's published response.

This letter makes no allegation of misconduct against any councillor, Council officer or community organisation.

It seeks answers about decisions concerning publicly owned land, the information supplied to elected representatives, the treatment of affected community organisations, and the public's opportunity to participate before those assets are disposed of.

Council will have another opportunity to consider these matters on 25 August.

The community should have the answers before it does.

Steve Prothero
Editor
Eye on Shoalhaven Council
